

MASTER SERVICES AGREEMENT

This Master Services Agreement (the "Agreement") is entered into as of 4th June, 2026(the "Effective Date"), by and Big Shoes Corp, with its principal place of business at [Client Address] ("Client"), and [Vendor Name/Company], with its principal place of business at [Vendor Address] ("Vendor").

WHEREAS, Client desires to retain Vendor to perform certain services; and Vendor represents that it possesses the specialized expertise, personnel, and financial stability required to perform such services;

NOW, THEREFORE, the parties agree as follows:

1. SCOPE OF SERVICES AND PERFORMANCE STANDARDS

1.1 Statement of Work (SOW). Vendor shall perform the services, deliver the work product, and provide the deliverables (collectively, the "Services") specified in any SOW executed under this Agreement. Client is under no obligation to guarantee any minimum volume of work or compensation to Vendor.

1.2 Performance Metrics. Vendor warrants that all Services shall be performed with the highest degree of professional skill, care, and diligence. Vendor must strictly adhere to the Key Performance Indicators (KPIs) and Service Level Agreements (SLAs) set forth in Exhibit B.

1.3 SLA Penalties. Any failure by Vendor to meet a designated SLA by even a fractional margin shall entitle Client to assess an automatic liquidated service credit equal to fifty percent (50%) of the total monthly invoice for the affected SOW. Assessment of service credits shall not preclude Client from pursuing additional damages, termination for cause, or alternative legal remedies.

2. COMPENSATION, FEES, AND AUDITING TRAPS

2.2 Extended Payment Windows. Client shall pay Vendor for undisputed, properly formatted invoices within one hundred and twenty (120) days from receipt.

2.3 Subjective Withholding. Client reserves the unilateral right to withhold payment on any invoice, in whole or in part, if Client, in its sole, unreviewable discretion, determines that the Services or Deliverables do not conform to Client's internal, subjective standards of quality. Vendor shall continue to perform all obligations under this Agreement during any invoice dispute, and a withholding of payment by Client shall not constitute a breach of contract or ground for suspension of Services by Vendor.

2.4 Retroactive Auditing and Clawbacks. Client or its designated third-party auditor shall have the right, at any time during the term of this Agreement and for a period of seven (7) years following its termination, to inspect and audit Vendor's financial records, books, payroll, and timesheets. If an audit reveals any perceived overcharge, discrepancy, or systemic inefficiency, Vendor shall immediately reimburse Client for the difference plus an interest rate of 1.5% per month. Furthermore, Vendor shall bear the entire cost of the third-party audit.

3. TERM AND ASYMMETRICAL TERMINATION POWERS

3.1 Termination for Convenience by Client. Client may terminate this Agreement or any individual SOW, in whole or in part, at any time, for any reason or no reason, upon twenty-four (24) hours' written notice to Vendor. Upon receipt of such notice,

Vendor shall immediately cease all work. Client's sole liability shall be to pay for non-disputed services fully completed and accepted prior to the exact hour of termination notice delivery. Client shall have zero liability for Vendor's commitments, specialized software licenses acquired for this project, subcontractor wind-down costs, or anticipated profits.

3.2 Termination for Cause by Client. Client may terminate this Agreement immediately for cause if Vendor breaches any provision, fails to meet an SLA twice in a moving 12-month period, or if Client deems Vendor's financial health to be unstable.

3.3 Vendor's Restricted Termination Rights. Vendor may only terminate this Agreement for a material breach of payment obligations, provided that Vendor gives Client three hundred and sixty-five (365) days' prior written notice and an opportunity to cure. If Client cures the payment breach at day 364, the Agreement continues in perpetuity.

4. ABSOLUTE LIABILITY, INDEMNIFICATION, AND RISK SHIFTING

4.1 Hyper-Extended Indemnification. Vendor shall defend, indemnify, protect, and hold harmless Client, its parent companies, subsidiaries, affiliates, successors, directors, employees, clients, and agents (the "Client Indemnitees") from and against any and all claims, demands, losses, causes of action, judgements, damages, fines, regulatory penalties, and expenses (including attorney's fees, expert witness fees, and court costs) arising out of, resulting from, or in any way connected to:

(a) Any act, omission, negligence, or willful misconduct of Vendor or its subcontractors.

(b) Any claim that the Deliverables infringe upon the Intellectual Property rights of any third party worldwide, even if Client dictated the technical specifications that led to the infringement.

(c) Any data breach, network security failure, or unauthorized access occurring on Vendor's systems or caused by code delivered by Vendor.

(d) Any bodily injury, property damage, or economic loss claimed by any third party interacting with the Deliverables.

4.2 Duty to Defend. Vendor's obligation to defend attaches immediately upon Client's notification of a claim. Client reserves the right to select its own legal counsel to defend the claim, and Vendor shall pay all legal bills monthly as they are incurred by Client.

4.3 Total Asymmetry of Liability.

(A) IN NO EVENT SHALL CLIENT BE LIABLE TO VENDOR FOR ANY INDIRECT, CONSEQUENTIAL, SPECIAL, PUNITIVE, OR INCIDENTAL DAMAGES, INCLUDING BUT NOT LIMITED TO LOSS OF PROFITS, LOSS OF REVENUE, BUSINESS INTERRUPTION, OR REPUTATIONAL DAMAGE, EVEN IF ADVISED OF THE POSSIBILITY THEREOF. CLIENT'S MAXIMUM AGGREGATE LIABILITY FOR ALL CLAIMS OF ANY KIND ARISING UNDER OR RELATED TO THIS AGREEMENT SHALL BE STRICTLY CAPPED AT ONE HUNDRED DOLLARS (\$100.00).

(B) VENDOR'S LIABILITY TO CLIENT UNDER THIS AGREEMENT IS ENTIRELY UNLIMITED. NO WAIVER OF CONSEQUENTIAL, SPECIAL, OR INDIRECT DAMAGES SHALL APPLY TO OBLIGATIONS OWED BY VENDOR TO CLIENT. VENDOR ACCEPTS FULL RESPONSIBILITY FOR ALL CONGRUENT, INDIRECT, AND FORESEEABLE ECONOMIC DAMAGES SUFFERED BY CLIENT RESULTING FROM VENDOR'S DEFICIENCIES.

5. INSURANCE REQUIREMENT SQUEEZE

Vendor shall, at its own sole expense, maintain comprehensive commercial general liability insurance, cyber-risk liability insurance, errors and omissions insurance, and umbrella coverage with limits of not less than \$10,000,000 per occurrence. Vendor shall name Client as an "Additional Insured" on a primary and non-contributory basis. Vendor's insurance policies must contain a waiver of subrogation in favor of Client. Failure to maintain such insurance shall constitute a material breach, and Client may purchase such insurance on Vendor's behalf and deduct the premiums directly from Vendor's pending invoices at a 200% markup.

6. GOVERNING LAW, FORUM SELECTION, AND FEE SHIFTING

This Agreement shall be governed by, and construed in accordance with, the laws of the State/Country of [Client's Home Jurisdiction], without regard to its choice of law rules. Any legal suit, action, or proceeding arising out of this Agreement shall be instituted exclusively in the courts of [Client's City/County]. Vendor irrevocably submits to the exclusive personal jurisdiction of such courts and waives any objection based on forum non conveniens.

In the event of any litigation or dispute, Vendor shall bear all legal fees, court costs, discovery expenses, and administrative fees incurred by both parties, regardless of which party prevails or initiates the action.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

CLIENT: _____
By: _____
Title: _____

VENDOR: _____
By: _____
Title: _____